



CHAPTER xxx.

An Act to confirm a Provisional Order made by the Minister of Transport under the Tramways Act 1870 relating to Leeds Corporation Tramways. A.D. 1933.
[18th July 1933.]

WHEREAS the Minister of Transport has made the Provisional Order set out in the schedule to this Act annexed under the authority of the Tramways Act 1870 : 33 & 34 Vict.

And whereas a Provisional Order made by the Minister of Transport under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament : c. 78.

And whereas it is requisite that the Provisional Order set out in the schedule to this Act annexed should be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Leeds Corporation Tramways Order Confirmation Act 1933. Short title.

2. The Order set out in the schedule to this Act annexed shall be and the same is hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act. Confirma-
tion of Order
in schedule.

A.D. 1933.

SCHEDULE.

LEEDS CORPORATION.

Order authorising the lord mayor aldermen and citizens of the city of Leeds to construct additional tramways in their city.

Short title. 1. This Order may be cited as the Leeds Corporation Tramways Order 1933.

Incorporation of Acts. 2. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Order are hereby incorporated with this Order:—

The Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking);

Section 3 (Interpretation of terms) section 19 (Local authority may lease or take tolls) and Parts II and III of the Tramways Act 1870:

Provided that the said section 19 shall be read and have effect as if the words “but nothing in this Act contained shall authorise any local authority to place or run carriages upon such tramway and to demand and take tolls and charges in respect of the use of such carriages” were omitted from that section.

Promoters. 3. The lord mayor aldermen and citizens of the city of Leeds acting by the council shall be the Promoters for the purposes of this Order and are in this Order referred to as “the Promoters.”

Construction of tramways. 4. The Promoters may subject to the provisions of this Order construct and maintain in accordance with the plans and sections deposited at the office of the Ministry of Transport for the purposes of this Order (which plans and sections are in this Order referred to respectively as “the deposited plans” and “the deposited sections”) the tramways hereinafter described

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with all necessary and proper rails plates sleepers junctions turn-outs crossings passing-places poles posts brackets wires waiting rooms carriage houses sheds depots buildings engines appliances works and conveniences connected therewith or as may be necessary or proper therefor and for connecting and using the same with and as part of the Corporation tramways :

A.D. 1933.

Provided that nothing in this Order shall authorise any interference with electric lines and works of any undertakers under the Electricity (Supply) Acts 1882 to 1928 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

The tramways authorised by this Order will be wholly situate within the city of Leeds and are as follows (that is to say) :—

Tramway No. 1 (1 furlong 9·63 chains or thereabouts in length) commencing in Cardigan Road by a junction with the termination of the existing tramway of the Corporation passing thence into and along North Lane or any widening thereof and terminating in Otley Road by a junction with the existing tramway of the Corporation at a point 0·54 chains south of the intersection of the centre lines of North Lane and Otley Road ;

Tramway No. 2 (1·13 chains or thereabouts in length) commencing in Otley Road by a junction with the existing tramway of the Corporation at a point 0·72 chains north of the intersection of the centre lines of North Lane and Otley Road and terminating in North Lane by a junction with the said Tramway No. 1 at a point 0·78 chains west of the intersection of the said centre lines.

The said tramways will be laid as a single line throughout :

Provided that the portion of Tramway No. 1 between points respectively 1 furlong 2·10 chains and 1 furlong 7·04 chains from the commencement thereof shall not be constructed unless and until the carriageway of North Lane between those points has been so widened that a space of not less than nine feet six inches shall intervene between the outside of the footpath on either side of the road and the nearest rail of the tramway :

Provided also that no post or other apparatus shall be erected on any carriageway in connection with the tramways authorised by this Order without the consent of the Minister of Transport.

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Application
of existing
provisions.

5. The powers and provisions with regard to tramways contained in the Leeds Corporation (Consolidation) Act 1905 and in section 7 (Use of tramway posts by Postmaster-General) of the Leeds Corporation Tramways Order 1907 and of any byelaws and regulations made in pursuance thereof so far as such provisions byelaws and regulations are not inconsistent with the provisions of this Order shall apply to the tramways authorised by this Order as if such tramways had been Corporation tramways as defined in the said Act of 1905.

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